

that Plaintiff may have served an opposition memorandum, but failed to file it. Plaintiff shall file and serve their opposition memorandum, along with a proof of service showing when it was served on Defendant by March 25, 2026. The Court will consider Plaintiff's opposition memorandum if it was timely served on Defendant. No further briefing is needed. No appearance is required at the hearing on March 18, 2026.

6. 9:00 AM CASE NUMBER: C23-02906

CASE NAME: KATELYN SCHAEFER VS. BRYAN DOVE

***HEARING ON MOTION IN RE: ENFORCE CROSS-DEFENDANT ROGER BOAZ'S COMPLIANCE WITH SETTLEMENT AND RELEASE AGREEMENT**

FILED BY: DOVE, BRYAN

TENTATIVE RULING:

Summary

Defendant and Cross-Complainant Bryan Dove's ("Dove") Motion to Enforce Cross-Defendant Roger Boaz's ("Boaz") Compliance with Settlement and Release Agreement is **granted** as set forth herein.

Background

This case presents a complex history of procedural actions taken by Defendant Dove and Cross-Defendant Boaz. In summary, in this litigation, Plaintiff Katelyn Schaefer ("Plaintiff"), who was 16 years old at the time, attended a party on May 26, 2023 at the residence of Dove and David Dove in Discovery Bay, California. Plaintiff alleged that Defendants served alcohol to minors. The complaint further alleged that Defendants provided Katelyn Schaefer with multiple alcoholic drinks, to the point of severe intoxication. As a result, Katelyn Schaefer suffered a fall, hit her head, sustained a cut above her left eyebrow, and lost consciousness. Subsequently as a result of her injuries, Katelyn Schaefer was transported by helicopter ambulance to a trauma center. Ms. Schaefer was treated and was ultimately diagnosed with alcoholic intoxication, concussion with loss of consciousness, laceration of left eyebrow, and acute hypokalemia. Ms. Schaefer's blood alcohol content was .225 g/dl.

Dove filed a cross-complaint against Boaz on March 18, 2024. The record indicates that Boaz evaded service and Dove filed service by publication. On July 21, 2024, Boaz made an appearance through Notice and Acknowledgement of Receipt of Summons and Cross-Complaint, but failed to reply to the cross-complaint. Dove entered a default against Boaz on September 5, 2024. On October 23, 2024, the Court conditionally set aside the default against Boaz. Boaz filed an amended cross-complaint against Dove. The case became at issue after resolution of a series of procedural skirmishes regarding the operative pleadings. In the intervening period, the parties arrived at a settlement agreement with Plaintiff on October 9 2025.

Dove contends that on October 9, 2025, the Parties attended mediation with mediator Chris Appleton. (Appleton Decl. ¶ 2.) As a result of the mediation, the Parties agreed to the following terms, which was articulated in writing following the mediation:

- (i) Mr. Dove's [insurance] carrier will pay Plaintiff a certain amount to resolve all claims or prospective claims against all persons including, but not limited to, Mr. Dove and Cross-Defendant;
- (ii) Plaintiff will dismiss with prejudice, any and all claims arising from the events of May

- 26, 2025, which are the subject of this matter;
- (iii) The cross-complaint from Mr. Dove against Cross-Defendant [Boaz] will be dismissed with prejudice, and any affirmative claims as set forth in Cross-Defendant's [Boaz] previously dismissed cross-complaint will be abandoned, and Cross-Defendant [Boaz] will withdraw his motion for leave to file first amended cross-complaint, which is currently set for hearing on November 5, 2025, in the Contra Costa County Superior Court;
 - (iv) Each party will bear their own costs and fees on the complaint and cross-complaints;
 - (v) Plaintiff will be required to satisfy any outstanding liens and bills from the settlement proceeds;
 - (vi) The settlement agreements will contain confidentiality provisions regarding the facts and circumstances giving rise to the claims and results of the Parties' negotiations. (Ibid., Ex. [emphasis added].)

Dove claims that on October 14, 2025, he sent an email to Boaz in an attempt to meet and confer regarding Boaz's failure to: (i) abandon the claims set forth in his cross-complaint, and (ii) and withdraw his motion for leave to file a first amended cross-complaint with prejudice. That same day, Boaz responded to counsel's email and represented that although he agreed to vacate his pending cross complaint, he did not agree to vacate the same with prejudice. (Harris Decl., ¶ 4, Ex. A.) Boaz also sent correspondence to Dove and to the mediator indicating that he wished to assert additional claims against Dove.

On November 26, 2025, Dove filed this Motion to Compel Compliance with the Parties' Settlement and Release Agreement. Dove also moves this Court for an order for monetary sanctions in the amount of \$2,400 against Boaz which reasonable attorney's fees for meeting and conferring with Boaz, and reviewing the files and records concerning this dispute, and subsequently having to bring this Motion. (See Harris Decl., ¶ 15.) This Motion is made pursuant to Code of Civil Procedure sections 128.5 and 664.6. This Motion is by a Notice, a Memorandum of Points and Authorities, the Declaration of Chris Appleton, and the Declaration of Xavier E Harris.

Boaz did not file a timely opposition to this Motion. On March 9, 2026, Dove filed a Notice of Non-Opposition.

Analyses

Self-Represented Litigant

The Court is aware that Boaz is proceeding without an attorney in this lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rapleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117,

121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, “[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.’ [Citation.] When one party has counsel and the other does not, the trial court ‘should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.’” *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants.

Boaz Did not Oppose this Motion

Under Cal. Code of Civ. Proc. §§ 1005(b), an opposition to a motion is due on or before nine (9) court days before the hearing. This hearing was calendared for March 18, 2026. Nine court days before March 18, 2026 is March 5, 2026. As of the date of this tentative ruling, no timely opposition was filed by Boaz.

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].

Moreover, California courts recognize that a party’s failure to file a timely opposition is tantamount to a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues).

Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Applied here, held to standard of a practitioner before the court, the Court finds that Boaz's failure to file a timely opposition to this motion is deemed to his consent to the granting Dove's motion.

The Settlement Agreement is Enforceable under Section 664.6

Cal. Code of Civ. Proc. § 664.6(a) states:

"(a) If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement."

Applied here, Boaz's own words and conduct are sufficient for the Court to enforce his obligations under the agreement, which again required him to withdraw his motion for leave to amend his first amended cross-complaint with prejudice and abandon his claims against Mr. Dove. Specifically, Boaz sent correspondence to the parties indicating that he intended to set aside the Court's ruling on November 12, 2025 because he "reasonably believed that the matter had been resolved through mediation and relied on written confirmation from the mediator." (Decl. of Xavier Harris, Ex. G). Exhibit I (Decl. of Xavier Harris) also contains an executed copy of the Confidential Settlement Agreement and Release, bearing Boaz's signature, dated November 12, 2025.

Based on the foregoing, the Court finds that the Parties entered into a settlement agreement on October 9, 2025 wherein Plaintiff has dismissed all claims against Dove and Boaz, and that Boaz and Dove have agreed to dismiss cross-complaints / cross-claims against each other, which was articulated in writing by the settlement mediator and confirmed in court on November 12, 2025.

Accordingly, the Court finds that Dove has proved, by a preponderance of the evidence, that such agreement, as articulated by the mediator, was accepted by Boaz, who agreed to dismiss his cross-complaint against Dove, with prejudice.

Sanctions

Under Cal. Code of Civ. Proc. § 128.5, "a trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." Here, Boaz's actions in refusing to cooperate with the settlement that he agreed to, and failing to oppose this motion to enforce the settlement agreement, lack any legal justification or merit. His refusal to cooperate with the settlement and delay are tactics made completely in bad faith and resulted in causing unnecessary delay.

After reviewing the moving papers, and applying the applicable statutory and decisional authorities, the Court finds good cause to grant this motion and the requested relief.

Ruling

1. Defendant and Cross-Complainant Bryan Dove's Motion to Enforce Cross-Defendant and

Cross-Complainant Roger Boaz's Compliance with Settlement and Release Agreement is granted.

2. Roger Boaz shall pay the amount of \$2,400 in attorney's fees to Bryan Dove, which the court finds reasonable, and was necessitated by filing this Motion, no later than ten (10) days from the date of this motion pursuant to Cal. Code of Civ. Proc § 128.5.
3. The Court finds that the settlement agreement entered into by the Parties on October 9, 2025 is valid and enforceable pursuant to Cal. Code of Civ. Proc § 664.6.
4. The Confidential Settlement Agreement and Release executed by Boaz is valid and enforceable pursuant to Cal. Code of Civ. Proc. § 664.6.
5. Pursuant to Cal. Code of Civ. Proc. § 664.6(a), the court dismisses this case without prejudice and retains jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. The Court also retains jurisdiction of over the parties to enforce payment of outstanding sanctions.
6. All motions, including the motions calendared for May 6, 2026 and August 12, 2026 are vacated, as this case is dismissed.
7. Dove's counsel is ordered to prepare and e-file a proposed order and judgment conforming to the foregoing ruling no later than ten (10) days from the date of the hearing of this motion, attaching a copy of the tentative ruling.
8. Plaintiff's Counsel is ordered to prepare a proposed judgment conforming to this ruling no later than twenty (20) days from the date of this ruling.

7. 9:00 AM CASE NUMBER: C24-00146

CASE NAME: IFE RAMIREZ VS. ANNA HAYTER

***HEARING ON MOTION IN RE: APPLICATION FOR DETERMINATION OF GOOD FAITH SETTLEMENT
FILED BY: HERNANDEZ, GERONIMO**

TENTATIVE RULING:

Defendant Geronimo Hernandez's Motion for Good Faith Settlement Determination, filed on November 17, 2025, is unopposed and, after independent review by the Court, it is granted. The Court will execute the proposed order lodged on November 17, 2025. No appearance is required at the hearing on March 18, 2026.

8. 9:00 AM CASE NUMBER: C24-00633

CASE NAME: ELI HAZAN VS. VOLKSWAGEN GROUP OF AMERICA, INC.

**HEARING ON SUMMARY MOTION FILED BY DEFENDANT
FILED BY: VOLKSWAGEN GROUP OF AMERICA, INC.**

TENTATIVE RULING:

The Court continues this hearing, *sua sponte*, to April 8, 2026 at 9:00 a.m. in this Department 16. No further briefings are required. No appearances is required at the hearing on March 18, 2026.